

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JASON CONN,

Petitioner

VS.

DARLA D SHARP,

Respondent

) Case Number: FMS-25-387601

) Hearing Date: July 7, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME), CHILD
SUPPORT, ATTORNEY FEES AND COSTS

TENTATIVE RULING

**The parties are ordered to appear in person or via Zoom video at 9AM on 7/7/2026 in
Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and
Instructions for Remote Appearance in San Francisco Family Court set forth above.**

At the hearing, the Court also intends to issue the following findings and orders.

A. Procedural History

- 1) Petitioner Jason Conn (Father) and Respondent Darla D. Sharp (Mother) have one minor child, Silver (DOB 11/22/2016, age 9). Mother lives in San Francisco; Father lives in Sonora.
- 2) On 10/13/2025, Father filed a request for orders relating to custody, parenting time, child support, and attorney fees and costs. He requested joint legal and physical custody. Mother filed a response in which she sought joint legal custody and sole physical custody. The parties disagreed whether Mother moved with Silver to San Francisco with or without Father's consent.
- 3) Father's request was set for hearing on 1/8/2026 but the parties reached an agreement at mediation and agreed to continue the hearing to 4/14/2026. Pursuant to a Stipulation and Order

1 filed 12/31/2025, the parties agreed, and the Court ordered, that the parties shall share joint legal
2 custody of Silver and that Father shall have parenting time from Friday to Sunday (or Monday if
3 Monday is a holiday) once per month, an additional weekend day that the parties are able to agree
4 to, regular phone calls, every Thanksgiving, and the second week of winter break and summer
5 break.

- 6 4) On 1/29/2026, Father filed a declaration requesting that exchanges be permitted to occur with
7 trusted adults designated by either parent, provided that 24-hour notice is given, with the goal that
8 Silver is emotionally safe. On 3/30/2026, Father filed another declaration requesting an order for
9 Silver to attend school in Tuolumne County, specifically her prior Waldorf School, or a
10 comparable local school; alternatively, Father requested that the Court grant his previously
11 requested orders. On 4/6/2026, Father filed another declaration reiterating his requests.
- 12 5) On 4/10/2026, Mother filed a declaration stating the parenting time schedule was working well
13 for Silver and that Silver wished for exchanges to be between her parents.
- 14 6) At a 4/14/2026 hearing, the Court ordered the parties to attend further mediation to discuss their
15 parenting time disputes, ordered Father to provide paystubs so that the Court can calculate child
16 support, and set the matter for further hearing on 6/11/2026. The Court ordered Mother's counsel
17 to prepare the Findings and Order After Hearing (FOAH), but a FOAH has not yet been
18 submitted to the Court.
- 19 7) On 5/14/2026, the parties attended mediation and were unable to reach an agreement.
- 20 8) On 6/2/2026, Father filed an update declaration stating that the current parenting time schedule is
21 inadequate and has led him and Silver to be distant. He requests 6 weeks of parenting time over
22 the summer (3 weeks to him, 2 weeks to Mother, 3 weeks to him). Father also requests additional
23 parenting time—ski week in February, first and third weekends in March, the first week of spring
24 break, Thanksgiving break including Silver's birthday (Father to have Saturday to Wednesday in
25 even-numbered years), and Winter break (Father to have Week 1 in odd-numbered years). Father
26 also requests an order for Mother to pay his parenting time travel costs, an order for parental
27 communication (e.g., monthly updates on Silver, notification of any extracurricular activities,
28 performances, etc.), and an order relating to third-party exchanges.

- 1 9) On 6/2/2026, Mother filed an update declaration. She states Silver moved to a new school and is
2 adjusting well. Mother requests flexibility in the Friday exchange time, from 4PM to 6:30PM,
3 since the new school lets Silver out late. Mother states that Father's suggested summer visitation
4 schedule is not in Silver's best interests. Mother's proposed schedule for the summer is for Silver
5 to spend 3 weeks with Father, from 6/21/2026 to 6/28/2026 and 7/19/2026 to 8/2/2026, or to
6 rotate every 2 weeks, starting with Father. In either proposal, Mother requests that she have
7 custody during the first two weeks of August.
- 8 10) At the 6/11/2026 hearing, the parties appeared at the hearing and did not stipulate to having a
9 Judge Pro Tem hear the matter. Thus, Father's request relating to custody and parenting time was
10 continued to 7/7/2026, and his request relating to child support and attorney fees and costs was
11 continued to 8/18/2026.

12 **B. Findings and Order**

- 13 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
14 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
15 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
16 child is the United States.
- 17 2) **The parties are ordered to appear in person or via Zoom video at 9AM on 7/7/2026 in**
18 **Department 404.**
- 19 3) Mother's attorney is ordered to prepare and submit a proposed FOAH for the 4/14/2026 hearing
20 forthwith, as counsel was previously ordered to do.
- 21 4) At least 20 days before the 8/18/2026 hearing on financial matters, both parties shall file and
22 serve updated Income and Expense Declarations containing all required attachments, including
23 paystubs.
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